



Memorial University of Newfoundland Students' Union

Canadian Federation of Students'
Local 35

Constitution and Bylaws
As Amended May 2025

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Part I: CONSTITUTION

An Act to Incorporate Memorial University of Newfoundland Students' Union
(May 23, 1968)

Be it enacted by the Lieutenant-Governor and House of Assembly in Legislative Session convened, as follows:

A. TITLE

This Act may be cited as The Memorial University of Newfoundland Students' Union Act, 1968.

B. INTERPRETATION

The term:

1. "by-laws" means by-laws under this Act, and includes what are deemed to be by-laws by virtue of Section J;
2. "Council" means the Council of Students' referred to in Section F;
3. "Union" means the Memorial University of Newfoundland Students' Union incorporated in this Act; and
4. "University" means the Memorial University of Newfoundland constituted by The Memorial University Act, chapter 108 of The Revised Statutes of Newfoundland, 1952.

C. INCORPORATION

1. Fraser March, Derek Green, Gerald Barbour, David Baird and John Frecker, all of the City of St. John's in the province, together with such other persons as may hereafter become members of the Union, are hereby incorporated, created and constituted a body corporate under the name "Memorial University of Newfoundland Students' Union."
2. The head office of the Union shall be situated in the City of St. John's in the province.
3. Section 20 of The Interpretation Act, chapter 1 of The Revised Statutes of Newfoundland, 1952, applies to the Union.
4. The property and assets of that unincorporated body known as the Memorial University of Newfoundland Students' Union shall as from the date of the coming into force of this Act become the property of the Union and shall be vested in it, and all liabilities of that body as of such date shall become liabilities of the Union and shall be paid and satisfied by it.

D. OBJECTIVES

The objects of the Union are to:

1. promote artistic, literary, educational, social, recreational, charitable and sporting activities for the advancement of the

- interests of its members and others;
2. act as the official organization of the students of the University; and
 3. co-ordinate, promote and direct the activities of the students of the University.

E. POWERS AND AUTHORIZATION

The Union is authorized and empowered to:

1. take and hold by purchase, grant, lease, gift, donation, devise, legacy or bequest or otherwise howsoever, real and personal property of every kind, nature and description, and sell, lease, mortgage, alienate or otherwise howsoever dispose of any such real personal property as may be deemed necessary for carrying out the objects and purposes of the Union;
2. invest or otherwise use for the objects of the Union any moneys received;
3. enter into arrangements with any authorities, governmental, municipal, local or otherwise that may seem conducive to the attainment of the Union's objects, or any of them, and obtain from any such authority any rights, privileges and concessions which the Union may have capacity to receive and may think desirable to obtain, and carry out, exercise or comply with any such arrangements, rights, privileges and concessions;
4. erect, maintain, improve, repair and otherwise deal with any building or buildings in order to further the objects of the Union;
5. borrow money for any of the purposes of the Union, and secure the repayment of any money so borrowed by any form of debenture, bond, pledge, charge, mortgage, promissory note or other security howsoever, and, without restricting the generality of the foregoing, make and issue debentures or bonds and secure the repayment of any debentures or bonds so made and issued by deeds of trust or mortgage;
6. draw, make, accept, endorse, discount, execute and issue bills of exchange, promissory notes and such other instruments as may be necessary or convenient;
7. raise money for the objects of the Union by all suitable means; and
8. do such other things and exercise such other powers as are incidental or conducive to the attainment of its objects or to the carrying out of any of the purposes of this Act.

F. CREATION

1. There shall be a Council of the Students, the members of which shall be elected or appointed from the members of the Union in accordance with the by-laws.
2. Subject to the by-laws, the control, management and administration of the Union are vested in the Council and the powers of the Union are exercised by the Council.
3. All the powers and authority vested in the Union or the Council by or under this Act shall be capable of full and complete exercise and implementation notwithstanding the fact that any or all of the members of the Union or of the Council may be under the age of twenty-one years when such exercise or implementation takes place, and anything done or agreed to be done in such exercise or

implementation shall be fully effective and capable of complete enforcement.

G. BY LAWS

The Union may make by-laws not inconsistent with this Act or any other Act of the province providing:

1. for membership of the Union;
2. for the election of officers of the Union and the Council, and the election and appointment of members and committees of the Council;
3. for the convening and holding of meetings of the Union and the Council;
4. for the government and discipline of members involved in activities of the Union;
5. for the imposition of fines and other penalties and sanctions, provided, however, that no such by-laws shall be effective until approved by The Board of Regents of the University;
6. for the appointment of employees of the Union and the Council;
7. for the fixing and collecting of annual and other fees, provided, however, that no such fee shall be effective until approved by The Board of Regents of the University;
8. for the entering into agreements and contracts with any person;
9. for the conduct, control and management of the affairs of the Union; and
10. generally for any purpose necessary or desirable for or incidental to the carrying out of its objects and the exercise of its powers

H. COUNCIL SEAL

1. The seal of the Union is the seal of the Council
2. Subject to the by-laws, all deeds, and documents to which the Council is a party and to which a seal is requisite shall be authenticated by the seal of the Council and signed by such person or persons as may be authorized to affix the seal to any deed or document by resolution of the Council.

I. By LAWS

Subject to the by-laws, the Council may

1. appoint committees and delegate to them such powers, functions, and duties as it considers necessary or desirable; and
2. make rules and regulations relating to the performance of its own powers, functions and duties and the performance of powers, functions and duties of any committee appointed under paragraph (1).

J. EFFECTIVE BY LAWS

Until repealed or amended under this Act

1. the constitution of that unincorporated body known as the

- Memorial University of Newfoundland Students' Union; and
2. the by-laws made under the constitution referred to in paragraph (1) In effect immediately before the coming into force of this Act shall together be deemed to be the by-laws of the Union in so far as they are not inconsistent with this Act.

κ. OFFICERS AND WORKERS

The officers and members of the Council of the Students of that unincorporated body known as the Memorial University of Newfoundland Students' Union elected by the students and appointed by the Council and in office immediately before the coming into force of this Act shall be the officers and members of the Council for the purposes of this Act and shall hold office in accordance with the provisions of the by-laws.

L. UNIVERSITY ACT

This Act and any power or authority vested in the Union, the Council or any persons by or under this Act are subject to the Memorial University Act, chapter 108 of The Revised Status of Newfoundland, 1952, as now or hereafter amended, and to any power or authority conferred by, and any rules and regulations now or hereafter made under, the last-mentioned Act.

Part II: Bylaws

Section 1: General

A. PREAMBLE

Whereas the Students' Union is committed to the provision of goods and services to students and to the representation of the student body in matters affecting the quality of student life.

B. INTERPRETATION

1. The terms "Students' Union," "MUN Students' Union," "the Union," and "MUNSU" shall denote the Memorial University of Newfoundland Students' Union, as incorporated on May 23, 1968.
2. The term "Council of the Students' Union," "Council," "Board," and "Board of Directors" shall refer to the elected Board of Directors which supervises and administers the campaigns, services, and operations of the Students' Union.
3. "CRO" shall denote the Chief Returning Officer of the Memorial University of Newfoundland Students' Union.
4. "DRO" shall denote the Deputy Returning Officer of the Memorial University of Newfoundland Students' Union.
5. The terms "MUN" and "University" shall refer to Memorial University of Newfoundland.
6. The Memorial University of Newfoundland Students' Union Act (R.S.N. 1968) shall be considered the constitution of the MUN Students' Union. All matters discussed herein shall be considered bylaws of the Students' Union.
7. The term "executive" shall refer to the Executive Committee of the Union, which shall consist of the Executive Director of Advocacy, the Executive Director of Campaigns, the Executive Director of External Affairs, Communications, and Research, the Executive Director of Finances and Services, and the Executive Director of Student Life.
8. "Regular Board Meeting" shall be defined as the scheduled meetings of the Students' Union Board of Directors, as approved each term.
9. "Emergency Board Meeting" shall be defined as a meeting called outside of the regular meeting schedule, according to the processes outlined in Section 9.
10. "Appropriate Student Media" shall be defined to include CHMR Radio, The Muse, the Internet, social media, and posters.
11. "Secretary to the Board" shall denote the MUNSU Resource Coordinator who shall act as Secretary to the Board of Directors and who shall be responsible for taking minutes at meetings of the Board, recording attendance of Directors, and ensuring distribution of meeting agendas.
12. The term "Canadian Federation of Students," "CFS," or

“Federation” shall refer to the Canadian Federation of Students, of which MUNSU is a member. Services and campaigns organized with the Federation work to increase the accessibility of post-secondary education and improve the lives of students.

C. IMPLEMENTATION

Upon proper adoption of this motion, all other bylaws of the MUN Students’ Union shall be deemed repealed. The terms and conditions of this motion shall take effect on January 1, 2013.

Section 2: Bylaws Pertaining to Bylaws

A. AMENDMENTS

1. Any proposed changes to these bylaws shall require two (2) weeks public notice to be given at a regular Board of Directors meeting.
2. All proposed amendments shall show which portions of the bylaws shall be deleted or amended, and proposed replacements and additions for these bylaws.
3. The proposals must be placed on public display on MUNSU's webpage, as well as published in appropriate student media, at least one (1) week in advance of the regular Board of Directors meeting at which they shall be voted on.
4. A two-thirds (2/3) vote of board members present at a regular meeting of the Board of Directors shall be necessary to amend bylaws.
5. If passed, the Secretary to the Board shall ensure amendments are included in the official sealed copy, subject to the minutes being accepted by the Board of Directors.
6. The bylaws may be amended only during the Fall and Winter semesters.

B. RESPONSIBILITY

1. The Secretary to the Board is charged with keeping up to date, sealed copies of the bylaws.
2. The bylaws must be made readily available to all Union members on an annual basis. A current version of the bylaws shall be provided on the Students' Union website.
3. The bylaws shall include the date of implementation for updated bylaws and the dates of previous amendments.

C. SUSPENSORY POWERS

1. Clauses may be suspended by the Board at a board meeting where a quorum of two-thirds (2/3) of all elected board members is present.
2. At least twenty-four (24) hours notice must be given to all MUNSU Directors of any motion to suspend.
3. A quorum of two-thirds (2/3) of Board members must be achieved at a meeting in order to consider a motion proposing the suspension of a clause or clauses. Two-thirds (2/3) consent of those present is then required to pass a motion proposing the suspension of a clause or clauses.
4. Motion presented to the Board proposing suspension must state which clause(s) are to be suspended. These motions must also state a reason for suspension.
5. Clause(s) can be suspended for a period no longer than two (2) weeks.
6. If the Board wishes to suspend a clause or clauses for longer than two (2) weeks, Board must follow the procedures for suspension as set out in clauses 2 through 6 of this subsection at the end of each two-week period.

7. The following sections and clauses cannot be suspended using the powers contained in this subsection:

Section 1

Section 2

Section 13

Section 3: Finances

A. GENERAL

1. The Finance and Services Committee shall be charged with the responsibility of overseeing the financial affairs of the Students' Union
2. The Finance and Services Committee shall normally be chaired by the Executive Director of Finance and Services.

B. BUDGET

1. A preliminary MUNSU Budget shall be developed for the beginning of the MUNSU fiscal year and an operating MUNSU Budget shall be developed for the remainder of the fiscal year, as outlined in the Financial Procedures Policy.

C. FEES

1. No Students' Union membership fee or levy may be removed or adjusted without a referendum favouring the change unless otherwise specified herein.
 2. The Health Insurance Fee and Dental Insurance Fee may be adjusted through a two-thirds (2/3) majority vote of all elected members of the Board of Directors.
 3. Membership fees will be collected on behalf of the Canadian Federation of Students, Canadian Federation of Students Services, and the Canadian Federation of Students - Newfoundland and Labrador, Inc. from all full-time and part-time students belonging to the Students' Union and remitted to the Federation each semester.
 4. Membership fees for the Canadian Federation of Students, Canadian Federation of Students - Services, and the Canadian Federation of Students - Newfoundland and Labrador, Inc. will be adjusted each academic year by the rate of change in the Canadian Consumer Price Index during the previous calendar year in accordance with the applicable bylaws of the Federation.
 5. Membership fees for the Canadian Federation of Students, Canadian Federation of Students - Services, and the Canadian Federation of Students - Newfoundland and Labrador, Inc. may be adjusted according to the by-laws of the Federation, upon ratification by the Board.

D. AUDIT AND ACCOUNTING

1. An independent audit of the Students' Union's books shall be conducted annually. The audits shall be presented to the Board of Directors and shall be accessible to the membership upon ratification, as outlined in Section 18.2 and the Financial Procedures Policy.
2. The MUN Students' Union will follow Generally Accepted Accounting Principles of Canada.

E. DISBURSEMENT OF FUNDS AND CHEQUE SIGNING

1. Any expenditure of Students' Union funds for a sum less than \$5000 must be approved by any two (2) executive members.
2. Any expenditure of Students' Union funds for a sum of \$5000 or greater must be approved by any three (3) executive members.
3. Approval must be documented in writing before the release of any Students' Union funds in excess of \$500 via signature of the appropriate number of executive members.
4. If an expenditure is made that does not meet the above criteria, the purchaser will be charged for the cost of the expenditure. The Finance and Services Committee will discuss any further necessary disciplinary action.

F. EXECUTIVE COMPENSATION

1. Unless directed otherwise by the Board, the base rate for the Executive salary shall be the previous year's salary adjusted by the annual rate of change in the St. John's, NL Consumer Price Index for the previous calendar year. The executive compensation package shall include the following:
 - a. All executive members shall be entitled to reimbursement for academic costs, not to exceed the value of three credit hours per semester
 - b. All executive members shall be enrolled in the Health and Dental plan offered by the Students' Union to its members at no charge to the executive members

G. STIPEND

1. Non-Executive Directors shall be eligible for a stipend every two weeks during the Fall and Winter semesters:
 - a. fifty (50) dollars per stipend for Faculty/School Directors and Constituency Directors;
2. At the end of each stipend allocation period, the Executive Director of Finance and Services will submit a Report on the Stipends of the Board based on Section G.2 to the Finance and Services Committee for approval.
3. Should a Director not wish to receive their stipend, they may opt-out by contacting the Executive Director of Finance and Services.

Section 4: Elections

A. GENERAL

1. The exact dates for nomination and voting shall be determined by the Board of Directors, with the following restrictions:
 - a. The dates will be set such that voting will take place over two (2) consecutive working days.
 - b. Nominations will be opened for at least five (5) consecutive business days.
 - c. At least two (2) weeks notice prior to the first day of voting must be given for all MUNSU Elections and by-elections.
 - d. The annual General Election shall take place between the sixth and not after the twelfth week of classes of the fall or winter semesters.
 - e. No general election may be held during final exams or mid-term break.
2. The Chief Returning Officer and the Deputy Returning Officer shall be responsible for the Memorial University of Newfoundland Students Union elections, subject to Section 4: Elections.
3. Elections shall be conducted in accordance with the Elections Section of the Students' Union Policy Manual.

B. CANDIDATES

1. Candidates for all positions must be in clear academic standing at the university in the semester in which they are a candidate. The Chief Returning Officer shall verify academic standing.
2. Only members of the Union who have paid their Students' Union fees may file a nomination form and run for office of any elected position of the Board of Directors of the Students' Union. Work term students may also run and hold a seat as long as Students' Union fees are paid.
3. All candidates for the Board of Directors must be at least part-time students at Memorial University of Newfoundland.
4. No person may run for, or hold, more than one (1) elected position of the Union at any one time.

C. VOTING

1. Only members of the Union may vote in any Union election. Only those who belong to one ward can vote for that ward's representatives. Union members may vote only once.
2. The definition of an eligible voter in a Union election for the positions of the:
 - a. Executive Directors shall be all Union members;
 - b. Faculty/school representatives: Humanities and Social Sciences, Business Administration, Engineering and Applied Science, Music, Centre for Nursing Studies, MUN Nursing, Human Kinetics and Recreation,

- Science, Social Work, Pharmacy, Medicine, and Education shall be all Union members belonging to that particular faculty/school;
- c. Paton College Representative shall be all Union members living in Paton College;
- d. MacPherson College Representative shall be all Union members living in MacPherson College;
- e. Burton's Pond Representative shall be all Union members living in Burton's Pond Apartments;
- f. Part-time Representative positions shall be all part-time Union members;
- g. All other constituency representative positions, as per Section 8.A, shall be all members of the Students' Union who self-identify as members of the specific constituency.

D. VACANCIES

1. In the event of a faculty/school representative or constituency representative vacancy, and upon submission of the number of nomination signatures normally required for the position, an interim representative with full voting rights may be appointed until the next election, at which point the seat shall be advertised as open and nominations will be accepted from members of that ward.
2. The appointment of the representative is to be overseen by submission of a nominations package for the position in question with the requisite number of signatures to the MUNSU front desk email, and three out of the five executive directors, and subsequently to be approved by a simple majority vote at the next meeting of the Board of Directors.
 - a. In the case of multiple submissions, the first received submission shall be voted on first. Should all vacant positions be filled by vote, no other submissions shall be considered for that position.
 - b. If a nomination package is rejected during the Board of Directors vote, the candidate in question cannot run until the next By-Election or General Election.
 - c. The nominations package is to be made available through the MUNSU website or else on request.
 - d. Should a physical submission of a nomination package be made, it must be time stamped and signed by two witnesses upon receipt at the MUNSU office.
3. Interim representatives may be nominated by the respective group or collection of groups, where duly recognized by the Students' Union, listed below:
 - a. Faculty/School wards:
 - i. Humanities and Social Sciences Students' Representative: the collective academic societies of the Faculty of Humanities and Social Sciences;
 - ii. Business Students' Representatives: the collective academic societies of the Faculty of Business;

- iii. Centre for Nursing Studies Students' Representative: the CNS Society;
- iv. Education Students' Representative: the collective academic societies of the Faculty of Education;
- v. Engineering Students' Representatives: one representative per Engineering term society, to a total of two;
- vi. Human Kinetics and Recreation Students' Representative: the HKR students' society;
- vii. Medicine Students' Representative: the Medical students' society;
- viii. Nursing Students' Representative: the Nursing students' society;
- ix. Pharmacy Students' Representative: the Pharmacy students' society;
- x. Science Students' Representatives: the collective academic societies of the Faculty of Science;
- xi. Social Work Students' Representative: the Social Work student society;
- xii. Music Students' Representative: the Music student society.

b. Constituency wards:

- xiii. Indigenous Students' Representative: the Indigenous Students' Resource Centre;
- xiv. International Students' Representative: the International Students' Resource Centre;
- xv. Queer Students' Representative and Trans Students' Representative: MUN Sexual And Gender Advocacy (S.A.G.A.) Resource Centre;
- xvi. Students with Disabilities Representative: the MUN Disability Information and Support Centre;
- xvii. Women Students' Representative: Intersections Resource Centre;
- xviii. Paton College Residence Representative: the Residence Societies of Paton College;
- xix. Burton's Pond Apartments Representative: the Residence Societies of Burton's Pond;
- xx. MacPherson College Representative: the Residence Societies of MacPherson College;
- xxi. Students of Colour Representative and Black Students' Representative: the Campaigns and Action Committee;

Section 5: Appeals of Election Results

A. APPEALS

1. If a candidate is unsatisfied with the election results for a specific position then they may submit an appeal to the Chief Returning Officer. The Chief Returning Officer will review the appeal according to the process outlined in the Elections Policy.
2. If the candidate is unsatisfied with the decision of the Chief Returning Officer, then the candidate may appeal to the Board of Directors.
 - a. Appeals to the Board of Directors must first be brought to the Elections Committee.
 - b. The Elections Committee will assess the appeal and interview the candidate(s). The Elections Committee will then establish a recommendation
 - c. The Elections Committee shall bring the appeal before the full Board of Directors and deliver its recommendation. A vote will be conducted amongst the Board of which a two- thirds (2/3) majority is necessary to approve the appeal.
 - d. Candidates for election, or their campaign workers on the official list, who are current members of the Board of Directors, cannot take part in the debate. Abstaining members will continue to count towards quorum.
 - e. The Board is the final level of appeal.

B. PROCEDURE

1. In the event the election of position(s) is overturned, a by-election will immediately be organized for the role(s) overturned.

Section 6: By-Elections

1. By-elections shall be considered at the first meeting of the Elections Committee after the vacancy rises.

2. In the case where only one vacancy exists, the Chief Returning Officer may, with the Board's approval, allow the election to take place in that ward. The ward's choice will then be ratified by the Board. If and when such an election takes place, the Chief Returning Officer or someone appointed by him/her must be present.

3. If the total number of elected board members falls below one-half ($1/2$) of the available seats, the Board will be dissolved, and a new election called.

4. In the event of a by-election, all of the procedures outlined in Section 5 of the bylaws and in the Elections Policy apply.

Section 7: Referenda

A. INITIATING A REFERENDUM

1. A referendum may be initiated at any time by the Board of Directors of the Memorial University of Newfoundland Students' Union or by Union members in the form of a petition.
2. In the case of the Board calling the referendum, the meeting must have a quorum of two-thirds (2/3) of elected members of the Board, and the question must be passed by two-thirds (2/3) of those present. The Board shall be responsible for determining the exact question and voting dates.
3. In the case of Union members calling the referendum, the members must file a petition with the Secretary to the Board of Directors or a member of the Executive Committee containing the signatures of ten percent (10%) of Union members.
 - a. The petition must contain the question and the purpose of calling the referendum.
 - b. It must also contain the date of the petition commencement and of signatories. It shall be invalid if not presented within three (3) weeks of commencement to an Executive Director or Resource Coordinator.
 - c. The Board will set the dates for the referendum at its next regular meeting following presentation of the petition.

B. REFERENDUM PROCEDURES

- a. A referendum may only take place in the Fall or Winter semesters.
- b. The referendum must not be held more than four (4) and not less than two (2) class weeks from the meeting calling the referendum.
- c. The question of referendum shall be published by appropriate student media at least two (2) weeks before the referendum is to be held.
- d. One (1) week's notice of a public meeting, chaired by the Chief Returning Officer, will be given from the call of a referendum. The purpose of this meeting shall be to provide the opportunity for the formation of 'yes' and 'no' committees. In the event that one or both of these committees is formed, each committee shall elect a chairperson at that meeting who will be held responsible for rule infractions and be responsible for the management of committee funds. In the event that either or both committees is not formed, the referendum shall proceed regardless.
- e. The Board of Directors shall make funds available to each committee equally and without prejudice. The Union shall not otherwise lend material assistance to referendum committees.

C. REFERENDUM VOTING

1. Voting shall be open to all members of the Students' Union.
2. No member shall have more than one vote.
3. Voting shall be by secret ballot.

4. Referendum voting shall take place online through the MUNSU electronic voting system, which shall have the following features:

- a. Measures to ensure that only members can vote;
- b. Measures to ensure that voters do not vote more than once;
- c. The option to vote for or against a motion;
- d. The option not to vote on all motions.

5. A motion may only be passed by Referendum if at least ten percent (10%) of members cast a vote in the referendum and two-thirds (2/3) of votes cast are in favour of the resolution.

6. The Chief Returning Officer (CRO) shall announce the results of the Referenda within 24 hours of the closing of polling.

Section 8: Board of Directors Membership and Responsibilities

A. REPRESENTATION

Directors shall be elected to represent the following three (3) wards:

1. Faculty/School Directors

a. The following Faculty/School Directors shall be elected:

- i. Humanities and Social Sciences Students' Representatives
- ii. Business Students' Representatives
- iii. Centre for Nursing Studies Students' Representative
- iv. Education Students' Representative
- v. Engineering A Students' Representatives
- vi. Engineering B Students' Representatives
- vii. Human Kinetics and Recreation Students' Representative
- viii. Medicine Students' Representative
- ix. Nursing Students' Representative
- x. Pharmacy Students' Representative
- xi. Science Students' Representatives
- xii. Social Work Students' Representative
- xiii. Music Students' Representative

b. Representation will be based on the principle of one (1) representative position per Faculty/School, with the following exceptions:

- i. Humanities and Social Sciences: three (3) representatives
- ii. Science: three (3) representatives
- iii. Engineering: two (2) representatives, designated as Engineering A and Engineering B
- iv. Business: two (2) representatives

2. Constituency Directors

a. The following Constituency Directors shall be elected:

- i. Indigenous Students' Representative
- ii. International Students' Representative
- iii. Queer Students' Representative
- iv. Students with Disabilities Representative
- v. Women Students' Representative
- vi. Paton College Representative
- vii. Burton's Pond Apartments Representative
- viii. MacPherson College Representative Representative
- ix. Students of Colour Representative
- x. Trans Students' Representative
- xi. Black Students' Representative

3. Executive Directors

a. The following Executive Directors shall be elected:

- i. Executive Director of Campaigns

- ii. Executive Director of Finances and Services
- iii. Executive Director of Advocacy
- iv. Executive Director of Student Life
- v. Executive Director of External Affairs, Communications, and Research

B. DUTIES AND RESPONSIBILITIES

1. All Directors shall:
 - a. serve in office from May 1 to April 30;
 - b. be a student and a member of the Union during the Fall and Winter semesters;
 - c. attend all regular and special meetings of the Board and of the Union and provide acceptable reason to the Secretary to the Board in writing for missing a meeting;
 - d. be a regular member of at least two (2) standing committees of the Union;
 - e. hold one (1) vote in Board meetings;
 - f. prepare written reports for all conferences or meetings attended as an official representative of the Students' Union, where appropriate;
 - g. be in clear academic standing;
 - h. promote the campaigns, initiatives, services and actions of the Union and the Federation within the ward, faculty, school or constituency they represent;
 - i. consult with clubs, societies, or Resource Centres related to the respective faculty, school, or constituency;
 - j. provide the perspectives and insight of members of the ward, faculty, school or constituency they represent and endeavour to ensure those perspectives are integrated in the campaigns, initiatives and services of the Union;
 - k. submit oral reports at every meeting of the Board that they attend;
 - l. report at least one occurrence of engagement with their respective constituency per board meeting;
 - m. prepare semester end reports for the Fall semester and a year-end report in the Winter semester, outlining duties and responsibilities held throughout the term of office, problems or issues of concern, and suggestions or recommendations for future Board members.

2. Faculty/School Directors shall:
 - a. be students within the ward they represent;
 - b. serve on the Faculty or Academic Council of their ward, wherever student representative positions exist for which they are eligible;
 - c. provide assistance with the campaigns, initiatives, and services of the Union, to a minimum of three (3) hours per week outside of meetings of the Board and the Standing Committees of Union. At least one (1) of those hours must be scheduled office hours; alternate arrangements may be made in the case of extenuating circumstances.
3. Constituency Directors shall:
 - a. identify as members of the constituency they represent;
 - b. provide assistance with the campaigns, initiatives, and services of the Union, to a minimum of three (3) hours per week outside of meetings of the Board and the Standing Committees of Union. At least one (1) of those hours must be scheduled office hours; alternate arrangements may be made in the case of extenuating circumstances;
 - c. The Paton College Representative, East/West Tower Representative, and Burton's Pond Apartments Representative shall serve on and attend meetings of residence such as, but not limited to Residence Council, Residence Executive Committee, and/or the Burton's Pond Student Association, as appropriate and eligible.
4. All Executive Directors shall:
 - a. post scheduled hours of at least thirty-five (35) hours a week during regular office hours throughout the Fall, Winter, and Spring semesters;
 - b. be permitted fifteen (15) days of vacation;
 - c. each hold one (1) vote in executive meetings;
 - d. administer the Union on a day to day basis, implementing the campaigns, initiatives, services, and other directives of the Board;
 - e. at its first meeting, select from among themselves an Executive Committee chair, a Staff Relations Officer, and a CFS-NL Provincial Executive Representative;
 - f. submit bi-weekly work reports to the Board while classes are in session during the Fall and Winter semesters, and monthly work reports during the Spring semester;
 - g. adhere to decisions and directives made by the Board of Directors and respect the Board as the decision-making body of the Union;
 - h. participate in all training, awareness, and transition meetings and workshops of the Board or Executive Committee;
 - i. incoming executive will be required to work a minimum of 10 hours of role-specific training in between the election and the start of their term, and each outgoing required to ensure the training happens;
 - j. documented exceptions will be handled in an agreement between the incoming and outgoing directors to be approved at exec comm;
 - k. This does not include the introductory MUNSU training provided by the Resource Coordinator

- l. perform other duties, not assigned in their duties, as directed by the Board of Directors;
- m. not be enrolled in more than nine (9) credit hours per semester while they are Executives of the Union, unless otherwise explicitly allowed by the Board of Directors.

5. The Executive Director of Campaigns shall:

- a. coordinate the implementation of all campaigns of the Union;
- b. coordinate the implementation of Canadian Federation of Students campaigns on campus;
- c. work with clubs, societies, and Resource Centres to assist in the facilitation of their campaigns and to integrate their campaigns, concerns, and issues in the wider campaigns of the Union;
- d. work, in collaboration with the Director of External Affairs, Communications, and Research, with external organizations and coalition partners to assist in the facilitation of campaigns which are of relevance and concern to members of the Union;
- e. ensure the campaigns of the Union are reflected in the activities, events, initiatives, and services of the Union;
- f. develop, through the Student Rights and Action Committee, a comprehensive Campaigns Strategy integrating both Federation and local campaigns, to be submitted to the Board each year as a guide for campaign work;
- g. perform other duties as assigned by the Board or Executive Committee;
- h. work with the Women's Committee to develop initiatives to eliminate sexual harassment and improve the environment for women on campus and in the wider community;
- i. attend the Canadian Federation of Students general meetings;
- j. perform other duties as assigned by the Board or Executive Committee;
- k. serve on the University Senate, if eligible.

6. The Executive Director of Finances and Services shall:

- a. ensure that careful account is made of all monies received and disbursed by the Union;
- b. be responsible for keeping the Executive and Board informed of all issues which pertain to the finances and services of the Union;
- c. oversee, in collaboration with the Finance and Services Committee, the preparation of the annual budget for submission to the Board;
- d. inform the university of the Union's membership fees, and the membership fees of the Federation each year;
- e. review and ensure the proper collection and receipt of membership fees for both the Union and the Federation each semester;
- f. be responsible for overseeing the financial procedures and records of the Union;
- g. be responsible for all financial records, including books accounts and audits;
- h. provide regular statements of accounts to the Board and the membership;
- i. oversee the operation of Union and Federation services, and their promotion on and off campus;
- j. liaise with the Board of Directors and the Manager of CHMR-FM to ensure and facilitate its operation;

- k. perform other duties as assigned by the Board or Executive Committee.

7. The Executive Director of Advocacy shall:

Academic

- b. assist members in the preparation and carrying out of academic appeals;
- c. promote and publicize issues of relevance to members pertaining to their academics, to academic appeals, and to university rules and regulations (academic and non-academic);
- d. serve on the Senate Committee on Undergraduate Studies, Executive Committee of Senate, Retroactive Drops and Readmissions Committee, and the University Senate;
- e. monitor and maintain familiarity with academic structures and regulations of the university;
- f. liaise with the Board of Directors, the membership, and the University on academic affairs;

Financial

- g. f. assist members in addressing problems relating to student financial assistance, and in the preparation and carrying out of student financial assistance appeals;
- h. promote and publicize issues of relevance to members pertaining to student financial assistance;

Legal

- i. serve as the liaison between members and the Union's legal counsel;
- j. facilitate the Union's legal aid service;
- k. assist students with Residential Tenancies issues they may encounter;
- l. promote and publicize the Union's legal aid and advocacy service;

Other

- m. assist members in the preparation and carrying out of non-academic appeals and proceedings related to university policies such as but not limited to the Non-Academic Complaints Policy and the Student Code of Conduct;
- n. work closely with the Executive Director of Campaigns on the development and implementation of campaigns relating to student debt, student rights, academics, student financial assistance, and the reduction and elimination of tuition fees;
- o. ensure, in collaboration with the Academic Affairs Committee, that all student representative seats on committees or other decision-making or consultative bodies of the University are filled by members of the

- Union appointed by the Union;
- p. perform other duties as assigned by the Board or Executive Committee

8. The Executive Director of Student Life shall:
 - a. oversee the operation of clubs, societies, and Resource Centres;
 - b. promote and publicize the Union's clubs, societies, and Resource Centres;
 - c. inform students and clubs, societies, and Resource Centres of their eligibility for MUNSU funding opportunities;
 - d. host an information session for Residence Executives in the Fall semester;
 - e. coordinate a conference of all clubs, societies, and Resource Centres in the Fall or Winter semester;
 - f. coordinate regular meetings with Residence Executive members and, in collaboration with the residence representatives on the Board, promote Students' Union initiatives, campaigns, and services within residence;
 - g. coordinate social events for the Union membership;
 - h. coordinate, in collaboration with other executive directors and board members, Welcome Weeks events;
 - i. coordinate the annual campus-wide Winter Carnival in the Winter semester;
 - j. supervise, in collaboration with the Student Life and Funding Committee, the disbursement of grants to clubs, Centres, and individual members;
 - k. perform other duties as assigned by the Board or Executive Committee.
9. The Executive Director of External Affairs, Communications and Research shall:
 - a. serve as the official spokesperson of the Union;
 - b. receive general communications directed toward the Union or Executive and direct them toward the appropriate Director;
 - c. oversee the publication of promotional and informational materials, media releases, research documents, the handbook and all other official or internal documents of the Union;
 - d. oversee the production and regular up-to-date maintenance of electronic forms of communication such as the Students' Union list-serv and website;
 - e. ensure the proper and appropriate documentation of official records of the Union;
 - f. establish and maintain, in coordination with the Executive Director of Campaigns, strong relationships with appropriate external organizations and coalition partners which share the campaign goals and aims of the Union;
 - g. ensure the positive and consistent promotion and visibility of the Union, its campaigns, initiatives, and services both on-campus and off-campus

- h. coordinate the production of an annual mid-year report of the Union, to be presented to the Board at the last meeting of the Fall semester;
- i. coordinate and conduct research projects focusing on issues that have an impact on student life, accessibility of post-secondary education, and post-secondary education itself;
- j. coordinate workshops, seminars, and surveys on issues of interest and importance to students and to post-secondary education in general;
- k. coordinate, along with the other executives, Board training sessions;
- l. attend the Canadian Federation of Students and Newfoundland and Labrador Federation of Students General meetings;
- m. serve on the University Senate, if eligible;
- n. perform other duties as assigned by the Board or Executive Committee.

Section 9: Meetings

A. SCHEDULE

1. Regular meetings of the Board of Directors will be scheduled to occur no less than every two (2) weeks in the Fall and Winter semesters and no less than every four (4) weeks in the Spring semester.
2. The Board of Directors shall approve the date and time of regular meetings by majority vote at the first regular meeting of the term. Once approved, the date and time of regular meetings shall be modified only by majority vote of the Board of Directors.
 - a. Regular meetings of the Board of Directors shall normally be held from 5-7 pm on Wednesday evenings.
3. If the Board of Directors misses two (2) consecutive meetings, an Emergency Meeting shall be called immediately per §9.B here below.
4. Quorum for a regular meeting of the Board of Directors shall be a majority of elected members.

B. EMERGENCY MEETINGS

1. Emergency meetings of the Board may be called when necessary. At least forty-eight (48) hours notice of emergency meetings must be provided, and a reasonable effort must be made to inform all members of the Board.
2. Emergency meetings may be called by a majority of executive members, or by a majority of the elected Board.
3. The Board may conduct, in accordance with the bylaws, any regular item of business at an emergency meeting with the exception of the suspension of any bylaw.
4. Quorum for an emergency meeting of the Board shall be one-third (1/3) of elected members.

C. EXECUTIVE COMMITTEE MEETINGS

1. Executive meetings shall take place no less than once every two (2) weeks. Minutes of executive meetings shall be kept, documenting clearly all motions passed by majority vote at a meeting. Such minutes shall be accessible by the Union membership upon ratification of those minutes at a subsequent Executive meeting.
2. All votes, whether conducted by secret ballot or other means, shall be considered to have been secret ballot votes and specific votes in favour, against, or abstentions shall not be identified.
3. The Chair shall be responsible for ensuring that motions passed by the Executive Committee are implemented, in conjunction with those executive members and other parties who are relevant to the particular motion.
4. The Chair shall be responsible for ensuring that all necessary parties are

informed of decisions made by the Executive Committee, in the form of memorandum to relevant parties.

5. Quorum for an executive meeting shall be at least three (3) executive members.
6. When voting, three (3) executive members shall constitute a majority.

D. STANDING COMMITTEES OF THE BOARD OF DIRECTORS

1. Standing committees shall meet on a regular basis. The meeting schedule may be determined by the Committee; however, the following Committees must meet at least once every four weeks in the Fall and Winter semesters:
 - a. Advocacy Committee
 - b. Campaigns and Actions Committee
 - c. Membership Engagement Committee
 - d. Finance and Services Committee
 - e. Student Life and Funding Committee
 - f. Breezeway Working Group
 - g. Policy Review Committee
 - h. Global Affairs Committee

2. Each Committee must provide a report of its meeting and business to the Board of Directors at either the next regular Board meeting following the Committee meeting, or the Board meeting after that.

3. Quorum for Committee meetings shall be at least five (5) elected Board members in the Fall semester and three (3) elected Board members in the Spring semester, unless otherwise stated in the Committee's terms of reference.

E. CONDUCT OF MEETINGS

Regular and emergency meetings of Council shall be conducted according to the 'Conduct of Meetings' section of the Policy Manual.

F. ATTENDANCE

1. Members of the Board of Directors are expected to be in attendance at all regular meetings of the same.
2. If a member of the Board of Directors must be absent from a regular meeting of the Board of Directors, meetings of the Standing Committees of the Union, or meetings deemed necessary for the execution of a member's duties of office, they are expected to send their regrets to the Secretary to the Board no less than twenty-four (24) hours prior to the scheduled meeting time.
 - a. Regrets communicated to the Secretary to the Board with less than twenty-four (24) hours notice shall be considered an absence for the purpose of automatic reprimand per §14.D
3. A member of the Board of Directors who is unable to attend a regular meeting of the same may indicate to the Secretary to the Board that another member of the Board shall serve as their proxy for the duration of the meeting no less than twenty-four (24) hours prior to the scheduled

meeting time.

- a. The individual identified as a proxy must provide written agreement to the Secretary to the Board
- b. Only elected members of the Board may serve as proxy voters
- c. Executive Directors of the Union may not serve as proxy voters
- d. No individual member of the Board shall hold more than one proxy vote for the duration of a single meeting.
- e. Proxies may only be identified for regular meetings of the Board of Directors, and not other meetings of the Union.

Section 10: Board of Directors' Committees

A. GENERAL

1. The Board of Directors of the Students Union may establish committees of the Union and fix the terms of reference and membership thereto. Membership in all committees shall be considered open to all members of the Union unless otherwise stated.
2. Quorum for all committees shall be at least three (3) elected members of the Board during the Spring semester and five (5) elected members of the Board during the Fall and Winter semesters, or fifty percent (50%) plus one (1) of the elected board members who are members of a respective committee unless otherwise noted.

B. DEFINITIONS

1. Committees shall be designated as either standing or ad hoc.
 - a. A standing committee of the Union is a permanent committee of the union. Standing committees meet regularly to address agenda items related to their mandate.
 - b. An ad hoc committee of the Union is a temporary committee of the Union formed to accomplish a specific purpose. Once this purpose has been achieved, the committee is dissolved.

C. STANDING COMMITTEES

1. The following shall be the standing Committees of the Union and shall function according to their respective terms of reference:
 - a. Advocacy Committee (Chair: Executive Director of Advocacy) The Advocacy Committee shall be responsible for:
 - i. ensuring student representation on all committees and decision-making bodies at Memorial, and ensuring that all student representative seats are filled by members of the Union appointed by the Union;
 - ii. researching issues and undertaking initiatives and campaigns to improve the academic well-being of students;
 - iii. overseeing the advertising and nomination of student Senate and Regent appointments, and approving the appointment of those student representatives;
 - b. Campaigns and Actions Committee (Chair: Executive Director of Campaigns) The Campaigns and Actions Committee shall be responsible for:

- iv. organizing initiatives and campaigns to improve accessibility to post-secondary education, and coordinating all campaigns and government relations work of the Students' Union;
 - v. defending the on-campus and off-campus rights of students whenever they are threatened;
 - vi. Identifying issues which are of concern to students as members of the wider community, and organizing initiatives and campaigns to reflect the role of students as members of civil society.
- c. Student Life and Funding Committee
Committee (Chair: Executive Director of Student Life) The Student Life and Funding Committee shall be responsible for:
- i. overseeing the membership structures of the Students' Union, including but not limited to clubs, societies, and Resource Centres;
 - ii. overseeing and administering the provision of grants to members and to membership structures;
 - iii. coordinating membership-wide events such as, but not limited to, Winter Carnival and Welcome Weeks.
 - iv. the promotion, review, and disbursal of the following grants and awards of the Students' Union:
 - Conference Hosting Grants
 - Impact Awards
 - Individual Merit Funds
 - Special Project Grants
 - Recognition Grants
 - v. reviewing the efficacy of these grants and awards, and proposals for new grants or awards;
 - vi. ensuring the efficiency of grant and award disbursal systems to ensure that members are properly communicated with and receive approved grants in a timely manner.
- d. Finance and Services Committee (Chair: Executive Director of Finance and Services) The Finance and Services Committee shall be responsible for:
- i. reviewing, on an ongoing basis, the services of the Students' Union, as well as any proposals to improve or alter those services, developing proposals for any new services, implementing and promoting Students' Union and Federation

- services, as appropriate;
- ii. soliciting membership feedback on services of the Students' Union and Canadian Federation of Students;
- iii. handling health and dental plan appeals;
- iv. developing the annual budget of the Students' Union, in consultation with all relevant parties, and presenting it to the Board and to the membership for ratification, and proposing revisions of the budget to the Board when necessary;
- v. reviewing the finances of the Students' Union on a regular basis, so as to ensure compliance with the budget

- e. Membership Engagement Committee (Chair: Executive Director of External Affairs, Communications, and Research) The Membership Engagement and Communications Committee shall be responsible for:
 - i. overseeing and enhancing promotional initiatives and communications of the Students' Union, both internally toward its membership and externally to community;
 - ii. working to engage the membership of the Students' Union in the initiatives and services of the Union.
- f. Hiring Committee (Chair: Executive Director of Finance and Services) The Hiring Committee shall meet as needed and be responsible for:
 - i. advertising vacant employment positions with the Students' Union;
 - ii. interviewing candidates for all employment positions with the Students' Union (with the exception of bargaining unit positions which shall be conducted in accordance with the Collective Bargaining Agreement);
 - iii. reviewing periodically the efficacy of the Students' Union Employment Policy and proposing revisions as necessary;
 - iv. familiarizing themselves and the workplace with up to date labour policies and legislation.
- g. Women's Committee (Co-Chairs: Women's Representative and a female member of the Executive) The Women's Committee shall meet according to the schedule determined by the Committee and be responsible for:
 - i. identifying barriers to women's full participation in university life, developing strategies to address these barriers, and advancing women's equity in the University community;
 - ii. ensuring that the specific needs and concerns of women are being addressed in all of the work undertaken by the Union;
 - iii. membership shall be open to all members of the Students' Union self-identifying as women.
- h. Elections Committee (Chair: Chief Returning Officer or designate) The Elections Committee shall meet as deemed necessary by the Chair and be responsible for:
 - i. conducting hiring processes for elections staff, including but not limited to the Chief Returning Officer, Deputy Chief Returning Officer, and

- polling captains;
- ii. supervising, in collaboration with the Chief Returning Officer, all elections and referenda of the Students' Union, and assisting in their successful implementation;
- iii. handling any appeals from candidates or referendum teams, according to the processes outlined in the bylaws and the Elections Policy.
- iv. reviewing any issues arising from elections or referenda, and bringing issues or proposed revisions to existing policies to the Board;

periodically reviewing the efficacy of elections and referenda processes and recommending revisions wherever appropriate.

i. Breezeway Working Group (Chair: Director of Finance & Services) The Breezeway Working Group shall be responsible for:

- i. Developing initiatives to promote use of the Breezeway as a social, recreational, educational and progressive space for student activities
- ii. Developing initiatives to promote use of the Breezeway by student groups and organizations
- iii. Developing initiatives to promote awareness and use of the Breezeway by the broader campus and community
- iv. Developing programming and aesthetic ideas for use of the Breezeway that align with the Union's values and principles
- v. Promoting accessibility of the Breezeway, including initiatives directed toward under-aged and non-alcohol-consuming members of the Union

j. Policy Review Committee (Chair: Director of External Affairs, Communications & Research)

The Policy Review Committee shall be responsible for:

- vi. Facilitating the review of proposals for new policies, as per the Policy Review Procedures
 - vii. Facilitating the review of proposals for updated/amended policies, as per the Policy Review Procedures
 - viii. Facilitating the review of proposals for deleting policies, as per the Policy Review Procedures
 - ix. Archiving policies rendered redundant due to legal or other changes
 - x. Reviewing proposals for bylaw changes, as necessary and desirable, following a similar approach to the Policy Review Procedures in terms of soliciting feedback wherever possible engaging with the membership in a proactive way to identify needs and interests in new policies for the Union to consider
 - xi. periodically reviewing the efficacy of the Constitution and Bylaws, and proposing revisions as necessary;
 - xii. coordinating yearly review of MUNSU Policy Manual;
- k. Global Affairs Committee (Chair: Board Member)
- i. The committee will be chaired by a board member elected at the start of the semester
 - ii. The elected chair must be able to demonstrate

- competency and knowledge in talking about and researching global issues
- iii. The purpose of this committee is to research a given conflict/protest/event at the request of the Board of Directors
 - iv. The committee will provide an overview of the requested instance, drawing on reports and input from stakeholders
 - v. The Board of Directors will respond to this overview by, including but not limited to deciding to either release a statement, share educational information, or to decline further engagement by the union on a given issue
 - vi. The Executive Director of External Affairs will be responsible for ensuring the release of whichever method chosen by the Board.

Section 11: Clubs, Societies, and Residences

A. DEFINITION

1. A Club or Society shall be defined as a group originating from interest generated in the areas of academics, politics, recreation, culture, leisure, or other commonality.
2. A Class Cohort shall be defined as a group of students who work through a curriculum together to achieve the same academic degree together.
3. A Residence Society and/or House Council shall be defined as a group of students who reside in a particular residence building operated by MUN.
4. The operation of clubs, societies, groups, associations, Class Cohorts, Residence Societies, or Resource Centres shall be overseen by the Student Life and Funding Committee, as per its terms of reference.

B. MEMBERSHIP

Membership in clubs and societies shall be open to all students, faculty, staff, alumni, and members of the Memorial University of Newfoundland community. Members of the MUN Students' Union shall comprise a voting majority of the executive.

- a. A voting majority of executives who are members of the MUN Students' Union must be present during all votes by the executive.
- b. Groups Ratified by other student unions in addition to the MUN Students' Union are not subject to requiring members of the MUN Students' Union comprise a voting majority of the executive and are not subject to requiring a voting majority of members of the MUN Students' Union be present during votes.
- c. Groups Ratified by other student unions in addition to the MUN Students' Union must have meaningful undergraduate participation in the executive to retain ratification status.
- d. At least one executive from the MUN Students' Union must be a signing authority on the group's bank account if ratified by other unions.
- e. Have at least 2 executive members who are currently enrolled undergraduate students.

C. ELIGIBILITY

1. Ratification will be granted only as per Section 11, Subsection C.
2. To be eligible for ratification, groups must complete all of the following criteria:
 - a. successful completion of two semesters of recognition (this regulation is waived for academic societies);

- b. submission of an application for ratification;
 - c. submission of a budget for the previous year;
 - d. no unresolved issues from past years with the Student Life Committee.
- 3. To be eligible for ratification as a Class Cohort, groups must meet all the following criteria:
 - a. Submission of an application for ratification as a Class Cohort;
 - b. Collection of the signatures of 50%+1 of the class approving the creation of the Class Cohort and its governing members for submission in the ratification application;
 - c. Submission of a budget for the upcoming year;
- 4. Clubs or Societies looking to resume ratification after being inactive for up to three (3) years or failing to submit ratification and losing ratification status must demonstrate some form of continuity to the Student Life and Funding Committee in order to immediately be eligible for ratification without being required to go through the recognition process again. The following items will be considered when the Student Life and Funding Committee accesses if a group has sufficient continuity:
 - a. Continued access to the group's bank account;
 - b. Continued access to the group's email and social media accounts;
 - c. Contact with former executives or faculty adviser;
- 5. The MUN Students' Union will not recognize or ratify any group that the Board of Directors considers to be of a homophobic, transphobic, racist, ageist, ableist, sexist, religious-phobic, or otherwise discriminatory or exclusionary nature.

D. RATIFICATION PERIOD

- 1. A group will be considered ratified for a period of 1 year starting on the first day of the semester for which their most recent ratification application has been approved.
 - a. Ratification applications can be submitted on a semesterly basis.
 - b. Base Ratification Grants will be awarded on a semesterly basis for the semester in which ratification was applied for and approved.
 - c. The deadline for applying for ratification shall be the day before the final meeting of the Student Life and Funding Committee for the semester.
- 2. Groups applying for ratification during the Spring semester will be eligible for half the base ratification grant, as indicated in the Special Funding Policy.

E. CLASSIFICATION

- 1. To operate on campus, groups must receive formal notice of ratification or recognition status at a regular meeting of the Student Life and Funding

Committee.

a. Recognition

- i. Recognition shall be considered for those groups organizing on campus for the first time.
- ii. Groups that have been recognized for their second consecutive semester are eligible to apply for Recognition Grants but for no other grants or awards.

b. Ratification

- iii. Ratification implies eligibility for funding in the form of ratification grants, Special Project Grants, Impact Awards, and Conference Hosting Grants.
- iv. Groups will be subject to a two (2) consecutive semester period of recognition prior to being eligible for ratification.

c. Ratification as a Class Cohort

- i. Ratification as a Class Cohort implies eligibility for funding in the form of Class Cohort Grants and Special Project Grants.
- ii. Ratification as a Class Cohort does not require Recognition.

2. There will be two categories of recognition and ratification, academic and non-academic.

3. Academic Ratification will be granted to the following:

- a. Groups formed around the academic units of the University.
- b. One society representing individual Faculties and Schools, with the exceptions noted below.
- c. For the Faculties of Arts and Science, one society may be ratified per academic department.
- d. For the Faculty of Business Administration, one society may be ratified for the Business Administration degree program, as well as one society for the Bachelor of Commerce program.
- e. For the Faculty of Engineering and Applied Sciences, one society for Term A and one society for Term B.

4. Non- Academic Recognition or Ratification will be granted to the following:

- a. Groups not based on a formal academic discipline.
- b. Any group formed around a common interest or activity that can be shown to contribute to the university community and, in particular, student life.
- c. Any club and society that for any reason operates without a constitution shall be governed by the MUNSU Constitution and Bylaws and the MUNSU Sample constitution for Clubs and Societies.

F. FUNDING

1. Successfully ratified groups each receive a Base Ratification Grants as per the Special Funding Policy for the semester in which they submitted ratification.
2. Successfully ratified groups will be eligible for Special Project Grants, Impact Awards, and Conference Hosting Grants as per the Special Funding Policy.
3. Groups successfully recognized for their second consecutive semester will be eligible for Recognition Grants as per the Special Funding Policy for the semester in which they submitted recognition.
4. Groups will have a period of 6 months to retrieve their issued cheques or have their cheques mailed after which they will be returned to accounting and no longer be cashable.
5. Ratified and Recognized groups will receive a \$40 per semester printing credit at The Attic. Unspent credit will not carry over in between semesters.

G. RESIDENCE

1. Residence Societies shall be eligible for funding as outlined in the special funding policy.
2. Residence Societies are ineligible for Special Project Grants, Recognition Grants, and Conference Hosting Grants.

H. RIGHTS

1. The Student Life and Funding Committee reserves the right to extend the deadlines outlined in Section 11.
2. The Students' Union reserves the right to investigate the books and activities of a club or society and revoke its ratification if violations of these by-laws or unethical practices take place.

Section 12: Resource Centres

A. DEFINITION

Resource Centre is an operation of MUNSU and shall be defined as a safer meeting space, an information and knowledge source, and a peer support network within the university community for members of groups who have been identified as traditionally oppressed by society. The Centres function to promote the advancement of oppressed groups and to promote basic human rights. No group that opposes or advocates against such goals will be considered for Centre status.

B. RESPONSIBILITIES

1. A Resource Centre shall:
 - a. provide resources to members of marginalized and/or oppressed groups, primarily on a personal basis and secondarily to fulfill academic and public awareness functions;
 - b. develop support services for the respective centre;
 - c. reach and provide services for as many of its constituency members as possible.
2. Maintain an up to date constitution and provide the Executive Director of Student Life and Membership Engagement Coordinator with the updated constitution when changes are made.
3. Maintain an up to date budget to be submitted to the Executive Director of Student Life and Membership Engagement Coordinator no later than the last day of classes every semester or upon request.

C. FUNDING

1. Resource Centres each receive a Resource Centre Grant as per the Special Funding Policy.
2. Resource Centres shall be eligible for Special Project Grants, Impact Awards, and Conference Hosting Grants as per the Special Funding Policy
3. Resource Centres will have a period of 6 months to retrieve their issued cheques or have their cheques mailed after which they will be returned to accounting and no longer be cashable.
4. Resource Centres will receive a \$500 per semester printing credit at The Attic. Unspent credit will not carry over in between semesters.

D. SUPERVISORY BODY

4. The Resource Centres' shall operate under a Resource Centres Board of

Directors.

5. The Resource Centres' Board of Directors shall exist as a guiding and regulatory body of all Resource Centres that are sanctioned as operations of the Memorial University of Newfoundland Students' Union.
6. The Resource Centres' Board of Directors shall be composed of not more than two (2) representatives of each centre (to be elected by the members of that centre), the Resource Coordinator, the Executive Director of Finance and Services, and the Executive Director of Student Life, as well as the corresponding constituency representatives of the MUNSU Board of Directors, as listed below. The Resource Coordinator will act as an ex-officio, non-voting member.
 - a. Indigenous Students' Representative: the Indigenous Students' Resource Centre;
 - b. International Students' Representative: the International Students' Resource Centre;
 - c. Lesbian-Gay-Bisexual-Transgender-Queer* Students' Representative: the LGBT Resource Centre;
 - d. Students with Disabilities Representative: the Disabilities Information and Support Centre Centre;
 - e. Women Students' Representative: the Women's Resource Centre;
7. The Resource Centres' Board of Directors shall meet at least five (5) times per semester.
8. Meetings of the Resource Centres' Board of Directors shall be chaired by the Resource Coordinator.
9. The duties of the Resource Centres' Board of Directors shall be ascertaining the appropriate operation of all centres, maintaining contact with the MUNSU Board of Directors, and reviewing proposals and making recommendations on new centres to the Executive Director of Student Life, or other duties as recommended by the Student Life and Funding Committee.

E. RIGHTS

The Student Life and Funding Committee reserves the right to investigate the books and activities of a resource centre if violations of these by-laws or unethical practices take place. Any such violations of the bylaws or unethical practices are the responsibility of the Resource Centres and shall be reported appropriately.

F. ELECTIONS

Where the structure of the Resource Centres calls for an elected body, the elections shall be coordinated with the Executive Director of Student Life and Resource Coordinator

Section 13: Student Media

A. DEFINITION

The official radio station of the Memorial University of Newfoundland Students' Union (MUNSU) will be CHMR-FM.

B. SUPERVISORY BODY

1. CHMR-FM shall operate under a Board of Directors, as outlined in the Board of Directors Bylaws for CHMR-FM and in the CHMR-FM License Agreement.
2. The Board of Directors of CHMR-FM shall act as a mediating body between CHMR-FM and MUNSU.
3. No part of this section may contravene federal broadcast legislation, including Public Notice CRTC 2000-12 and other regulations as contained in the CHMR-FM license agreement with the Canadian Radio-Television and Telecommunications Commission. In the event of a conflict, the CRTC License Agreement will be followed.

C. FUNDING

4. The operations of CHMR-FM shall be funded by the student media levy, internal and external revenue sources, and operational grants from MUNSU.
5. The CHMR-FM Station Manager shall each year draw up a draft budget for the service, in consultation with other parties as they deem necessary.
6. The draft budget for CHMR-FM will then be submitted to the Board of Directors of CHMR-FM for ratification.
7. Upon ratification by the Board, the budget will then be submitted to the MUNSU Board of Directors for review and inclusion into the MUNSU annual budget. The budget will be presented to the Board by the Station Manager or other officials duly designated by those parties to act in their stead. If the MUNSU Board fails to include the budget it will then be returned to the Board of Directors for revision and resubmission.
8. Until such time as a budget has been passed for the academic year, the previous year's budget figures will be used to operate the media service.

D. STUDENT LEVY

9. Pursuant to the student media levy referendum [October 2001], every full and part time undergraduate student registered with the St. John's campus of Memorial University will be charged a four-dollar (\$4) student media levy each semester. No less than two dollars (\$2) of that levy will be dedicated toward the operations of CHMR-FM. The other two dollars (\$2) is directed by Memorial University of Newfoundland towards the operations of

The Muse. Use of and access to levy funds by CHMR- FM shall be as follows:

- a. The monies collected through the student media levy for CHMR-FM will be used by MUNSU for the sole purpose of funding CHMR-FM.
- b. The monies collected through the student media levy will be included within the budget of CHMR-FM.
- c. The monies collected through the student media levy may not be used for any other purpose than the funding of CHMR-FM. In the event MUNSU

- d. declines to provide an additional operating grant, the student media levy will still be utilized by the Board of Directors of CHMR-FM to fund its operations, with the exception of the CHMR-FM Station Manager salary, which is to be paid out of the regular MUNSU Budget and not the media levy.

In the event CHMR-FM ceases operations on a temporary basis, the money collected through the student media levy will be held in trust unused by MUNSU until such time as the student media service is once again operational, at which time the monies will be released to the student media service. In the event that the cessation of operations of either The Muse or CHMR-FM is determined by their respective Board of Directors to be permanent, the student media levy portion for that service will cease to be collected.

Section 14: Reprimand, Censure and Recall

A. REPRIMAND

1. The Board may reprimand any person holding office with the Union, including appointed staff, full- time staff or elected Directors.
2. One (1) week's notice of a motion to reprimand must be given at a Board meeting stating the officer involved and reason(s) for the reprimand.
3. No debate regarding the motion to reprimand shall be permitted until the officer on charge has been notified in writing.
4. The officer on charge shall be given every opportunity to speak in their own defense.
5. All directors and representatives must be given a reasonable opportunity to attend a meeting at which the vote is taken.
6. A simple majority of fifty percent plus one (50% +1) of the elected Directors present is required for reprimand.
7. The option of suspension from official duties and/or stipend for a period of not more than four (4) weeks may be included with the motion. For this option to be validly exercised it must:
 - a. be introduced with the original motion at reprimand;
 - b. be voted upon separately upon passing the order of reprimand.

B. CENSURE

1. An order to censure shall follow the same procedure as outlined for motions of reprimand, except the following conditions shall apply:
 - a. A censured director is required to immediately resign.
 - b. A majority vote of two-thirds plus one (2/3) of elected Directors must endorse the order at a regular Board meeting.

C. RECALL

- a. Faculty representatives may be recalled by a petition of one third (1/3) of their faculty.
- b. Directors at Large may be recalled by a petition of one third (1/3) of the Union membership.
- c. Constituency representatives may be recalled by a petition of one third (1/3) of the Union membership.
- d. Within one (1) week of the filing of the petition of recall, the Board shall call a by-election to fill the vacant position at the earliest possible date.
- e. A Board member who has been recalled may re-contest the seat.
- f. Any petition for recall shall be fixed with the date for commencement and shall be invalid if not filed with the Board within three (3) weeks. The petition may be filed with the Secretary to the Board of Directors.
- g. An Executive Director may be recalled by a petition and referendum. A petition of one third (1/3) of the membership shall be presented calling for the recall of the Executive Director. A referendum shall then be held as soon as possible, within

regulations for a referenda, to decide the issue.

- h. The members of the Board and Executive Directors of MUNSU can only be recalled individually.

D. AUTOMATIC PROCESSES

1. Should a member of the Board miss two (2) Board meetings, meetings of the Standing Committees of the Union, or meetings deemed necessary for the execution of a member's duties of office, without regrets, the member will be automatically reprimanded and notice of the reprimand will be served at the next regular meeting of the Board.
2. Upon missing an additional one (1) regular Board meeting, meeting of the Standing Committees of the Union, or meeting deemed necessary for the execution of a member's duties of office after automatic reprimand, without regrets, the member will be automatically censured and notice of the censure will be served at the next regular meeting of the Board.
3. This section shall not apply in the Spring semester or in cases of documented illness or bereavement
4. Should a member of the executive fail to communicate via standard professional channels (i.e. email, phone call, slack) with other executives for a period greater than 3 weeks, the member will be subject to an automatic censure
5. Should a member period fail to report at least one occurrence of engagement with their respective constituency per board meeting, per Section 8.B.I., over three meetings, the member will be subject to an automatic censure

Section 15: Conflict of Interest

A. GENERAL

1. No executive director, board member, or employee of the Union shall use their position to give unfair advantage, influence, or prejudice to the operation of the Union.
2. Conflict of interest shall include but not be limited to:
 - a. circumstances whereby the personal interests of an individual or an associated party will benefit as a result of the individual's position with the Union and/or its services;
 - b. circumstances whereby the personal interests of an individual or an associated party could be perceived to benefit as a result of the individual's position with the Union and/or its services;
 - c. circumstances, actions or influences where the advancement of those interests are detrimental to the interests and/or reputation of, or potentially harmful to, the Memorial University of Newfoundland Students' Union.
3. Any executive director, board member, or employee of the Union who believes they are in a conflict of interest must notify Council. Onus is on the individual to report potential conflicts of interest.
4. Any executive director, board member, or employee of the Union who believes they are in a conflict of interest shall abstain from discussion and voting on the subject of conflict.
5. Determination of a conflict of interest shall be made by a majority vote at a regular Board of Directors meeting. Potential conflicts of interest shall be assessed on an individual basis.
6. Failure to abide by conflict of interest guidelines shall be grounds for termination of employment, censure, reprimand or other disciplinary action.
7. Nothing in this section shall prevent an executive director, board member, or employee from entering to contract with Union.
8. Interpretation of this section shall be made in accordance with the terms of the Canadian Charter of Rights and Freedoms.

Section 16: Hiring Practices

A. GENERAL

1. The MUNSU shall maintain an updated list of all its casual, part-time and full-time employees. This list shall be accessible by any member of the Union.
2. All hiring of casual, part-time, or full-time employees must be conducted through the MUNSU Hiring Committee. A quorum of members of the Hiring Committee must be present for a meeting to be held. All recommendations for appointments must be documented in writing and held in the employee file.
3. All interviews for the same hiring must be conducted by the same subset of the Hiring Committee, containing a quorum of Hiring Committee members.
4. MUNSU shall give priority to its members when hiring casual or part-time employees.
5. This section shall apply to non-unionized positions only. Hiring for unionized positions shall be conducted in accordance with the most up-to-date version of the Collective Agreement.

Section 17: Gifts and Favours

A. GENERAL

1. All executive directors, board members, and employees of the Union shall avoid soliciting or accepting gifts or favours that might influence, or appear to influence, financial, business, or management decisions regarding the Union. Gifts or favours include but are not limited to: money, loans, credits, products, alcohol, preferential discounts, gifts, entertainment, favours, and/or services from suppliers, services (Students' Union or otherwise), businesses, political parties, and/or individuals.

2. Part-time employees of the Breezeway Bar shall be permitted to accept gratuities and tips.

3. Consumption of complimentary non-alcoholic beverages and small meals or snacks at university or government functions to which a member has been invited to represent the Students' Union on official business shall be permitted.

4. Violation of this policy shall result, at a minimum, in immediate reprimand.

Section 18: Records

A. GENERAL

1. The minutes of Board of Directors, executive meetings, general meetings, and other books and records of the Union, including all reports, financial records and statements, shall be kept in the Union General Office.

2. The books and records of the Union, including all reports, minutes, financial records and statements, and other documents, once approved by the appropriate level of authority, shall be made available for inspection within three (3) business days by any member upon receipt by the Union of a written request.

Section 19: Policy

A. GENERAL

1. All policy motions passed through the established decision-making mechanisms of the Students Union, as stipulated in the Constitution, Bylaws, and Policy Manual, shall remain policy of the Students' Union until retracted or changed by the same or higher authority as that which established them.

2. Referenda of Union members shall be considered the highest authority of the Students' Union, followed by Board Meetings, then Executive Meetings. Contracts and memberships with external organizations shall be considered legal matters and shall be adhered to as required by law.

Section 20: Seal of the Union

A. GENERAL

1. The Seal of the Union shall not be affixed to any instrument except in the presence of the Executive Director of External Affairs, Communications, and Research and another executive director.
2. The members who shall witness the sealing of documents shall be ratified by the Board of Directors.

Section 21: Membership

A. GENERAL

1. All persons who pay the semester levy shall be considered a member of the Union. Membership shall be for one semester only.

Section 22: Amendments

A. GENERAL

1. As amended March 4, 1997
2. As amended April 2003
3. As amended September 2005
4. As amended March 2007
5. As amended November 2013
6. As amended March 2017
7. As amended November 20, 2019
8. As amended February 5, 2020
9. As amended April 9, 2021
10. As amended February 9, 2022
11. As amended October 2023
12. As amended November 2023
13. As amended March 2024
14. As amended September 2024
15. As amended November 2024
16. As amended May 2025